

Upon further briefing, Defendant's motion to set aside default and default judgment and motion to quash service of summons is GRANTED.

Defendant's Motion to Dismiss is GRANTED.

Based upon the evidence presented, the Court finds that the Defendant was not validly served with the Summons and Complaint and that three years have now passed since the Plaintiff filed its Complaint.

The Court need not and does not make any finding on whether the "proof of service on file is false." (Defendant's supplemental brief, pg. 1:27)

TIANA PRATT vs. GEORGE WU; ET AL.
Case No. FCS059704

Motion to Set Aside Default

TENTATIVE RULING

The Parties are to appear.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QIBGWWNWaGlhXJTcGxIVHRXZz09>

Meeting ID: 161 155 4664

Passcode: 818575

One tap mobile

+16692545252,,1611554664#,,,,*818575# US (San Jose)

+14154494000,,1611554664#,,,,*818575# US (US Spanish Line)

Dial by your location

+1 669 254 5252 US (San Jose)

+1 415 449 4000 US (US Spanish Line)

+1 669 216 1590 US (San Jose)

+1 551 285 1373 US (New Jersey)

+1 646 828 7666 US (New York)

+1 646 964 1167 US (US Spanish Line)

+1 833 568 8864 US Toll-free